

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

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FRANCISCO CARVAJAL, Jr. as administrator of the Estate

AND FRANCISCO CARVAJAL, SR.

PLAINTIFF

INDEX NUMBER 515199/2015

DATE PURCHASED 12-21-2015

AMMENDED

COMPLAINT

-VERSUS-

THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF

THE CITY OF NEW YORK, DETECTIVE LOUIS YERO, SGT. MAURICE

CHISHOLM, P.O. ERIN FRAWLEY, SGT. PATRICK GOLDEN, SGT.

JOHN HENDERSON, JOHN AND JANE DOES

-----X
ANDRES MANUEL ARANDA

ATTORNEY FOR PLAINTIFF

930 GRAND CONCOURSE, SUITE 1A

BRONX, N.Y. 10451

1-718-590-1904

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PLAINTIFF: ESTATE OF FRANCISCO CARVAJAL

DEFENDANTS:

FRANCISCO CARVAJAL

820 OCEAN PKWY

BROOKLYN, N.Y. 11218

REPRESENTED BY:

ANDRES M. ARANDA

930 GRAND CONCOURSE, SUITE 1A

BRONX, N.Y. 10451

CITY OF NY, NYPD, SGT. CHISHOLM

P.O. ERIN FRAWLEY, SGT. GOLDEN

SGT. JOHN HENDERSON, DET. LUIS YERO

AND JANE AND JOHN DOES, P.O. S

CORPORATION COUNSEL

100 CHURCH STREET

NEW YORK, NY 10007

VENUE

VENUE: Venue is determined by both the place of the wrongful death and excessive force and by Plaintiff's residence within King's County.

JURY TRIAL

Plaintiff hereby demands a trial by jury of all facts and issues in this action that are triable.

PARTIES

Francisco Carvajal was an adult male resident of the County of Kings, City and State of New York, wrongfully, intentionally and negligently killed, when excessive and unnecessary force was used against him allegedly in order to subdue and/or arrest him and to protect Mr. RAFAEL LAUREANO , who was ALSO killed by the fusillade of shots negligently and intentionally fired by members of the NYPD WHO WERE ACTING AS POLICE OFFICERS AND WITHIN THE SCOPE OF THEIR DUTY and who were not properly trained and supervised in the performance of their duties as police officers. The medical examiner, Kristin Roman, performed an autopsy and rule the death a homicide. Doctor Roman determined that the death was caused by gunshot wounds of torso with perforations of heart, lungs, liver and intestines.

The Defendant City of New York was and is a MUNICIPAL CORPORATION duly organized and existing under and by virtue of the laws of the State of New York.

The City of New York is and was at all times relevant herein a Municipal Corporation created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police department or police force and the employment of police officers as said risk attaches to the public consumers of the services provided by its police officers.

Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein, the employer or entity employing acting officers, Detective Luis Vero, Sgt. Maurice Chisholm, P.O. Erin Frawley, Sgt. Patrick Golden, Sgt. John Henderson AND OTHER JOHN AND JANE DOE POLICE OFFICERS, ALL DEFENDANTS HEREIN, MEMBERS of the NYPD WHO WANTONLY, INTENTIONALLY, NEGLIGENTLY AND CARESSLESLEY FIRED APPROXIMATELY 30 BULLETS AT PLAINTIFF AND HIT HIM 13 TIMES CAUSING HIS DEATH.

Defendants, were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants and employees of the defendant, THE CITY OF NEW YORK AND ITS POLICE DEPARTMENT. Defendants were acting for, and on behalf of, and with the consent, power and authority vested upon them by THE CITY OF NEW YORK and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties, particularly and specifically at the time when they negligently and maliciously fired at plaintiff FRANCISCO CARVAJAL they did so as agents and employees of the defendant City of NY and were acting within the scope of their employment and on behalf of its employer, the City of New York. The individual defendants are sued herein in their official and individual capacities.

Defendants Detectives, Sergeants and Police Officers are and were at all times relevant herein, duly appointed police officers, members of the New York City Police Department and were at all relevant times acting as officers, servants, employees and agents of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK, assigned to a local area command center of the NYPD believed to be the 70th Police Precinct. Defendants Detectives, Sergeants and Officers are being sued herein in their official and individual capacities, the City is being sued as respondeat superior as the employer of said defendants and for its own negligent acts in the hiring, training and supervision of the afore mentioned detectives.

Defendant police officers and detectives' actions and inactions were part of a pattern, practice and modus operandi of the Police Department of the City of New York and the Defendant City of New York,

intended to violate and ignore the Constitutional rights of the people they come in contact with and are sworn to serve and protect; and such acts were the proximate cause of Plaintiff's death.

The acts of Defendants City, NYPD, Police Officers and Detectives, all defendants herein and the various John and Jane Does were committed under their authority as police officers hired by the defendant City of New York, members of the NYPD, vested with authority under and by virtue of the laws of the State of New York and were therefore committed under the color of statute and the laws of the State of New York and were committed during and in furtherance of their employment and within the scope thereof.

The Defendant City knew, or should reasonably have known, of the need for additional screening, training, supervision, disciplining, and holding accountable of police officers to insure that they would refrain from assaulting, killing and otherwise using unnecessary and excessive force to arrest individual citizens or contain situations without the need for escalation by drawing their weapons and firing at citizens repeatedly. Also the City knew or should have known of the need for clarity and truthfulness when reporting alleged incidents involving the discharging of their weapons, such as herein.

Through intentional and deliberate indifference, the Defendant City failed to adequately provide for screening, training, supervision and disciplining of police officers with respect to the way in which they repeatedly and constantly abuse the minority civilian population of the city with the resulting acts of wanton and unnecessary and intentional violence going unchecked, uncontrolled and unpunished. This type of intentional conduct and deliberate indifference is evidenced by newspaper articles, public demonstrations, televised reports, and decisions of the courts of the State of New York, reporting, highlighting and warning, that the City, the NYPD and its employees are and have engaged in various acts of misconduct, which includes physically and emotionally abusing individuals, ABNER LOUIMA; killing individuals, AMADOU DIALLO, ABNER GARNER, SEAN BELL, RANDOLPH EVANS AND ALBERT SPRUIL to name a few, and generally failing to act in a reasonable, honest and professional manner and capacity including but not limited to the following decisions:

Riddick v. City of New York, 772 NYS 2d, 994, 4 A.D. 3d 241 (1st Dept.)

Bonefant v. Kelly, 759 NYS 2d 872, 306 A.D. 2d 108 (1st Dept. 2003)

Wangwe v. Kerik, 748 NYS 2d 860, 298 A.D. 2d 322 (1st Dept. 2002)

STATEMENT OF FACTS

Mr. Francisco Carvajal was killed in a fusillade of bullets on September 29, 2014 after members of the NYPD were allegedly called to quell a disturbance at 820 Ocean Parkway in Brooklyn, New York. Initially the cops claimed Mr. Carvajal had stabbed Rafael Laureano several times and had come at them with a knife in his hands, much later it was determined that Mr. Rafael Laureano was never stabbed but had been shot and killed by the police officers responding. Initially it was said that Mr. Carvajal had been stabbed during the disturbance that led to the 911 call; but it was later also determined that he was killed by being shot repeatedly by the responding police officers who apparently panicked and opened fire indiscriminately killing both civilians. The officers' lack of proper training and proper supervision led to this unfortunate and unnecessary double homicide taking place. I say homicide because the Medical Examiner indicated as such in the attached Death Certificate. The officers also said initially that Mr.

Carvajal had broken down a door with as knife and this, upon information and belief, turned out not to be so. The officers and their employer, the NYPD, have given several conflicting and at times comic, account of what allegedly occurred. However, one fact is clear, two civilians were killed as a direct result and as a consequence of their actions and inactions on the evening of September 29, 2014 at 820 Ocean Parkway. The police also gave photographs to the press which allegedly showed a bloodied knife on the floor giving the false impression that this knife had been used by Mr. Carvajal to stab and kill Mr. Laureano.

The police alleged that they were called by defendant KATARYZNA RUSSO to the murder location because there was a violent disturbance going on. They allege that when they arrived they found Mr. LAUREANO, a large man who was a body builder, and asked Mr. Laureano to help break the door down. A clear violation of police rules and protocol. Allegedly, after breaking the door down, Mr Laureano ran into the apartment and struggled with Mr. Carvajal. Mr. Laureano and Mr. Carvajal had been friends for a long time and had worked out at the gym together. The police allege that as they were struggling somehow, and this has never been explained, they opened fire killing both man. They claim they did this in order to protect Laureano who was killed by a police bullet to the back. A clear indication that he was facing away from them thus being in between the cops and Mr. Carvajal who was hit at least nine times. I should note that both Mr. Laureano and Carvajal were body builders and rather large men. I should also note that the police failed to provide prompt or adequate medical attention to either victim; which further contributed to their pain, suffering and ultimate death.

After the illegal wrongful shooting homicide, the police officers concocted a story to cover up their ineptness and wrongful acts in killing both civilians. To this day they have changed their story several times and the only clear and truthful thing is that two men are dead both shot and killed by the police officers at the scene. Mr. Carvajal's family has not been able to learn the truth of what happened at the time both Mr. Carvajal and Mr. Laureano were gunned down by the police. Mr. Carvajal was killed as a consequence of the negligence, faulty training, faulty supervision, carelessness, action, inactions, lack of supervision, wanton disregard for the safety of a citizen, malfeasance, lack of training, lack of supervision and otherwise improper acts on the part of the police officers involved in the shooting, the NYPD who failed to properly train and supervise them and the City of New York who has failed to properly hire, train and supervise officers acting on its behalf and empowered by the City to carry and use weapons within the scope and as part of their employment. The NYPD and the City have properly trained officers to respond to situations in which a civilian is allegedly acting aggressively. Their only response is deadly force with the usual drastic results. The police have given conflicting self-serving statements of facts.

Mr. Carvajal was not only wrongly deprived of his life; but he was made to suffer unusually brutal pain and suffering as the bullets entered and ripped through his body. He was assaulted several times AS EACH BULLET RIPPED INMTO HIM. He was forced to suffer knowing that he was going to die as he lay on the floor with the life oozing from him through the many holes on his body caused by the police bullets. He was handcuffed behind his back as he lay dying, in front of his friends and neighbors. The officers alleged that they shot and killed Mr. Carvajal in self -defense and in order to protect Mr. Laureano. The only evidence that Mr. Carvajal had a knife and posed a threat comes from the mouth of the officers who shot and killed him and then lied about the events leading up to the assassination of both Mr. Carvajal and Mr. Laureano. These officers lied to the press in order to hide the fact that they acted improperly and failed to follow reasonably accepted guidelines that would ensure the safety of the citizens on the State and City of New York. The official police report on this matter states that on

September 29, 2014, inside apartment 714 at 820 Ocean Parkway, Brooklyn, N.Y. Victim, RAFAEL LAUREANO, died as a consequence of being stabbed "by perp with KNIFE in the torso." Allegedly Mr. Carvajal was the perp who stabbed Mr. Laureano. A Mimonides Hospital report indicates that Mr. Laureano was never cut or stabbed and died as a result of being shot by one of the responding police officers. A clear indication that the defendants, each of them, were covering up the truth.

The officers violated police protocol by failing to call in sufficient back up officers to the scene, by allowing Mr. LAUREANO, who was apparently highly agitated to enter the apartment of Ms. Russo and confront Mr. Carvajal, by allowing Mr. Laureano to break down the door to Ms. Russo's apartment and by discharging their weapons at close quarters with no warning, provocation and/or justification.

In shooting and killing Mr. Carvajal, the JOHN AND JANE DOE OFFICERS, ALL DEFENDANTS HEREIN, VIOLATED THE NYPD'S PROCEDURE No. 203-12, which deals with the use of deadly physical force and which sets forth the guidelines for using and discharging weapons and which states " police officers shall not discharge their weapons when doing so would unnecessarily endanger innocent persons".

NOTICE OF CLAIM

A notice of claim was filed on November 26, 2014, within 90 days after he was killed and well within the statutory time allowed on this matter. Said notice was filed as soon as the action accrued and this action is being commenced within one year and ninety days from the date the pendent claim herein arose. A 50-H hearing has not been held; but Plaintiff, Francisco Carvajal is deceased as a consequence of being murdered by the defendants and can- not testify at a hearing. The Claim was assigned number 2014PI036215 , and the defendants have failed to settle plaintiff's claim thus far.

FIRST CAUSE OF ACTION FOR WRONGFUL DEATH

The Defendants jointly and individually caused Plaintiff to die in that on or about September 29, 2014 at approximately 7:20 PM, inside of 820 Ocean Parkway Street (according to the arresting officers) plaintiff was shot repeatedly and killed by members of the NYPD acting within the scope of their employment and in furtherance of the business of the defendant City of New York. The defendants, acting in concert, recklessly, intentionally, negligently and maliciously opened fire on two civilians killing both of them. They did so acting at the direction of and in concert with their fellow officers. Thereafter, they filed false reports in order to cover up their mistakes in unnecessarily killing both civilians at the scene. This false paperwork included arrest reports, follow up reports and various other police reports. Plaintiff was repeatedly shot and killed instead of being protected by the police.

Plaintiff demands and is entitled for compensation for the wrongful death that was caused by the defendants, each and every one of them, and Plaintiff demands \$20,000,000.00 in damages as fair and just compensation for the death that came about as a result of defendants' intentional actions.

SECOND CAUSE OF ACTION FOR EXCESSIVE FORCE

Plaintiff repeats, alleges and reiterates the previous paragraphs with the same force and effect as if fully set forth herein.

That at all times hereinafter mentioned, defendants, including defendants JOHN AND JANE DOES, engaged in the actions and conduct alleged herein including the use of excessive and deadly force.

The act and omissions of the Defendants', jointly and individually, caused Plaintiff to be killed. All these acts were intended to allegedly calm down and subdue the situation; but instead ended up causing two deaths. Mr. Carvajal was falsely accused of trying to kill Mr. Lureano and of stabbing him, where in fact the officers killed them both. The officers involved were not properly trained and/or supervised by the Defendant City of New York causing the death of Mr. Carvajal.

This lack of training and supervision is tantamount to a pattern of practice on the part of the defendants. Several recent court cases and news articles have so indicated and have put the defendants on notice that this is occurring on an almost daily basis.

Mr. Carvajal was caused to suffer immense pain and anguish as the bullets tore through his body causing extensive tissue damage and bleeding. He laid on the floor in extreme pain, anguish and fear knowing full well that he was about to die. Defendants were improperly trained in how to react to a situation like this without having to resort to gunplay.

Plaintiff seeks compensation in the amount of \$20,000,000.00.

THIRD CAUSE OF ACTION FOR INFLICTION OF EMOTIONAL DISTRESS

Plaintiff repeats, alleges and reiterates the previous paragraphs with the same force and effect as if fully set forth herein.

Plaintiff was caused to experience mental anguish as he lay on the floor full of bullet holes awaiting his death, with no immediate medical attention provided. Plaintiff knew that he was innocent of any wrong doing; but had to experience being shot repeatedly and unnecessarily, without any warning, wondering what and why the police acted in such a brutal and savage manner and whether they were going to provide him with medical assistance. The City as employer of the officers involved in this violent and unnecessary death, is liable for their conduct in improperly inflicting mental pain and anguish on Plaintiff. The Defendant City was negligent in its hiring, training and supervision of its employees, including defendants herein. The defendants, each and every one of them, knew or had reason to know that repeatedly shooting an innocent man would cause him great pain, suffering, mental anguish and death.

Plaintiff seeks compensation in the amount of \$20,000,000.00.

FOURTH CAUSE OF ACTION FAILURE TO TRAIN, SUPERVISE AND NEGLIGENT HIRING

Plaintiff incorporates, alleges, repeats and reiterates each of the previous paragraphs with the same force and effect as if fully set forth herein.

Defendant City of New York, acting through the NYPD, HAD ACTUAL KNOWLEDGE AND/OR DE FACTO POLICIES, practices, customs and/or usages of failing to properly hire, train, supervise or discipline its police officers concerning correct practices in conducting investigations, such as herein, the use of force, interviewing of witnesses, assessment of the credibility of witnesses and situations being investigated, reasonable search of individuals and/or their property, the seizure, voucher, and/or release of seized property, obligation not to promote or condone perjury, and/or assist in the prosecution of innocent individuals and obligation not to promote or condone perjury and/or use deadly or excessive force and the obligation to effect an arrest only when the probable cause exist for such an arrest and to fire a weapon only when necessary, as a last resort and in a careful manner, not wildly and indiscriminately.

Additionally, Defendant City of New York, acting through District Attorney of each county and the Office of the King's County DISTRICT ATTORNEY had actual and/or de facto notice of the policies, customs and/or usages of failing to properly train, supervise, and discipline concerning its employees in conducting investigations, interviewing witnesses, including detectives, assessing the credibility of witnesses, again including detectives, the initiation and prosecution of criminal actions, obligation not to encourage, promote or condone perjury and/or assist in the prosecution of innocent individuals plus the obligation of candor towards the court. In fact, in the instant matter the NYPD and its brass went to unusual and extreme lengths to mislead the public as to what had actually happened. They released official police press reports indicating the Mr. Laureano had been stabbed to death by Mr. Carvajal; however the Medical Examiner conducted an autopsy and determined that Mr. Laureano had never been stabbed or cut and had instead died as a consequence of being shot by the defendant officers.

Upon information and belief, Defendant City of New York, through various agencies and departments, including the defendants herein, owed a duty of care to Mr. Laureano, as well as Mr. Florentino, to prevent the physical and mental abuse sustained by him as a direct consequence of defendants' combined actions. The Defendant City owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those similarly situated would probably result from conduct such as that described here and engaged in by defendants, agents of the City, namely, firing multiple rounds wildly in the direction of Mr. Carvajal, causing his death unnecessarily.

Upon information and belief, Defendant City of NY, knew or should have known through the exercise of reasonable diligence and care that defendant officers were not prudent and were potentially dangerous.

Upon information and belief, Defendant City of NY negligence in hiring and retaining defendants proximately caused plaintiff's injuries, and because of the City's negligence in hiring and retaining defendant officers, plaintiff incurred and sustained significant and lasting injuries causing his death.

Defendant City of New York acting through the King's County District Attorney's Office and had actual and/or de facto knowledge of the policies, practices, customs and/or usages of failing to properly train, supervise and discipline its employees to prevent the usages of wrongfully arresting, illegally stripping, maliciously prosecuting, indiscriminately shooting, abusing, causing pain and suffering, inflicting distress,

humiliating, degrading and taking the lives of individuals who are members of racial/ethnic minority groups, such as plaintiff, who was a dark skinned Hispanic male, on the pretext that they were involved in the stabbing of another individual, also killed by the police; where in fact there is no evidence that they were protecting anyone other than their word and there is no evidence that Mr. Carvajal was holding a knife other than the self-serving statement of the defendants. I should note that the police released a photograph of a bloodied knife and there is no evidence that anyone was cut with a knife.

The existence of the aforesaid unjust, illegal and unconstitutional practices, policies, customs, and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of NY in both the State and Federal Courts, and from a January 2006 statement by Deputy Commissioner Paul J. Browne that police commanders are permitted to set "productivity goals", or arrest quotas, please see *Colon v. City of NY* 2009 U.S. Dist. LEXIS 110520 (E.D.N.Y. Nov. 25, 2009) (Weinstein J.) *Allisha Brewster v. City of NY* (11 Civ4874) and *Genevieve Walls v. City of NY*, (10 Civ. 5769) among others. The issue of arrest quotas has been decided and it has been conclusively determined that officers of the NYPD are permitted, as a policy and/or practice to use quotas to make arrests. See *Bryant v. City of NY*, Index Number 22011/07, Supreme Court Kings County Feb. 18, 2011.

The defendant City of NY maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, Defendant City of NY ACTED WITH DELIBERATE INDIFFERENCE, and its failure was a direct and proximate cause of plaintiff's injuries and ultimate death as described herein.

The actions of defendants, acting under color of State law, deprived plaintiff of his liberty, his due process rights and rights, remedies, privileges, and immunities under the laws and Constitutions of the State of New York and the United States, treaties, ordinances, customary international law and norms, customs and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, to be free from deprivation of his liberty, the right to due process and to life.

By these actions defendants have deprived plaintiff of rights secured by common law, New York State Law, Federal Law, custom and usage of a right and the 4th, 5th, 6th and 14th Amendments to the US Constitution and the Constitution of the State of New York and the right to life as guaranteed to all of us. These failures are a direct result of the City's policies of not regulating and training its police officers properly. The City appears to have a hands off policy towards its police force with the ensuing result that members of the minority community are routinely shot and killed unnecessarily with no action taken by the City or the NYPD against the individual police officer involved.

Plaintiff demands \$20,000,000.00 in damages for this violation.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

By this reference, plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs.

The conduct of the defendant officers as described herein, including shooting plaintiff, amounted to an assault and battery. By reason of and as a result and consequence of the assault, plaintiff suffered emotional distress, embarrassment, fear, humiliation, shock, discomfort, loss of liberty, pain, suffering, damage to reputation and the loss of his of his most precious property, his life.

Upon information and belief, Defendant City of NY had sufficiently specific knowledge or notice of defendant officers' propensity for acts complained of herein and that their acts could reasonably have been foreseen or anticipated and with the right training, prevented.

However, Defendant City of NY failed to take any steps or any appropriate actions to assure plaintiff's safety and security and failed to protect and safeguard plaintiff's interest. Therefore, the defendant's City failure to safeguard and assure Mr. Carvajal's safety and security was a proximate cause of plaintiff's injuries and resulting death.

Plaintiff demands \$20,000,000.00 for this violation.

SIXTH CAUSE OF ACTION NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

By this reference plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs as tough fully set forth herein.

As set forth above, defendants engaged in seriously and extreme outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff prior to dying. Plaintiff's has damaged his personal life due to the severe mental pain and anguish which were inflicted through intentionally deliberate and malicious actions including being repeatedly shot by the defendants. Plaintiff was caused to suffer the anguish of knowing that he was going to die as a result of defendants' violent actions. This culture of violence is propagated, perpetuated and engendered by the acts of the defendants herein, in that they arrest innocent individuals and feed then to the wolves on Ryker's Island and at times, such as here, just unnecessarily and intentionally shoot then like dogs in the streets causing plaintiff's death.

Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

Plaintiff demands \$20,000,000.00 as compensation for these damages.

SEVENTH CAUSE OF ACTION PAIN AND SUFFERING

By this reference Plaintiff incorporates each and every one of the preceding paragraphs as if re-alleged herein.

Plaintiff sustained substantial pain and was made to suffer because of the acts of the Defendants.

Plaintiff sustained substantial pain and was made to suffer because of the acts of the Defendants.

While wrongfully and unjustly shot, Plaintiff was assaulted several times. Plaintiff was made to suffer the immeasurable pain which is caused by bullets ripping into your body repeatedly. Needless to say, this, in addition to all the above mentioned caused Plaintiff great pain and suffering.

Plaintiff demands \$20,000,000.00 as fair and just compensation for his pain and suffering.

EIGHT CAUSE OF ACTION LOSS EARNINGS

By this reference Plaintiff repeats, reiterates and incorporates each and every one of the preceding paragraphs as if re-alleged herein.

Plaintiff was gainfully employed and had an expectation of continued employment for at least 20 more years. His date of birth was February 20, 1967.

Plaintiff demands \$3,500,000.00 as loss earnings.

NINTH CAUSE OF ACTION LOSS OF AFFECTION

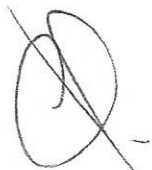
By this reference Plaintiff repeats, reiterates and incorporates each and every one of the preceding paragraphs as if re-alleged herein.

Plaintiff, FRANCISCO CARVAJAL Jr., loss the affection and companionship of his father when the father was unjustly and wantonly killed. Francisco Florentino, Jr. has suffered the tragic and untimely loss of his father and demands compensation in the amount of \$ 5,000,000.00.

WHEREFOR, PLAINTIFF, FRANCISCO FLORENTINO, demands compensation as follows:

1. WRONGFUL DEATH \$20,000,000.00
2. PAIN AND SUFFERING \$20,000,000.00
3. INFLICTION OF MENTAL AND EMOTIONAL DISTRESS \$20,000,000.00
4. ASSAULT AND BATTERY \$20,000,000.00
5. CIVIL RIGHTS VIOLATION \$20,000,000.00
6. FAILURE TO PROTECT \$20,000,000.00
7. EXCESSIVE FORCE \$20,000,000.00
8. NEGLIGENCE HIRING, TRAINING AND RETAINING \$20,000,000.00
9. LOSS OF AFFECTION \$ 5,000,000.00
10. LOST EARNINGS \$3,500,000.00

PLUS COMPENSATORY AND PUNITIVE DAMAGES.



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December 21, 2015